FreshWay Board archive — C12 · Liability and food safety

Incident register, October 2023 to September 2024

Incident	Number	Cost: goods destroyed and claims
Supplier recalls passed on to stores and online	17, of which 2 public	€0.31 mln, mostly charged back to suppliers
Refrigeration failure in a DC	3; the longest 5 hours, RDC Zuid, March 2024	€0.12 mln
Refrigeration unit failure on a truck, own fleet	11	€46,000
Refrigeration unit failure, subcontracted haulier	4	€19,000, of which €3,100 recovered
Chilled or frozen cabinet failure in a store	230	€0.27 mln
Online substitution with different allergen information	6	no claims; one question from the NVWA
Customer illness reported and linked to a FreshWay product	9 reported, none confirmed	none
NVWA store inspections	41: three written warnings, no fines	none

Who carries a temperature loss

Stage	Who carries it	What can be recovered
Supplier to DC, until accepted at the dock	the supplier	a credit note; the proof is the arrival temperature on the receipt, and without

Stage	Who carries it	What can be recovered
		it the claim is weak
DCs, own trucks, own vans	FreshWay	own insurance, above a deductible of €25,000 per event
Subcontracted haulier	the haulier, up to the statutory €3.40 per kg; no higher value agreed	the rest stays with FreshWay
Hired vans	FreshWay; the goods travel at its risk	nothing
The customer	FreshWay as the seller: a refund, and product liability if someone is harmed	product-liability insurance

HACCP obligations

EU food hygiene law (Regulation 852/2004) requires procedures based on HACCP. FreshWay has one HACCP plan per DC, one for the stores based on the sector hygiene code, and one for e-fulfilment and delivery. Critical limits: chilled at no more than +7 °C, the Dutch legal maximum, with FreshWay's own band at +2/+7 °C. Frozen at –18 °C or colder; the law allows a brief rise of at most 3 °C in transport and local distribution, FreshWay's own limit allows none. Food that may be unsafe is withdrawn and reported to the NVWA (Regulation 178/2002, article 19).

What has to be recorded to prove the cold chain

- Frozen goods in storage and transport: a recording instrument to EN 12830, with records dated and kept for at least a year (Regulation 37/2005).
- Frozen goods in store freezers and in local distribution: one easily visible thermometer is enough under the same regulation, so there is no automatic record.
- Chilled goods: the law sets the temperature, not the proof. FreshWay's HACCP plans require a check at receipt, in storage and at dispatch.
- Home delivery: temperature loggers travel with part of the runs, in own and hired vans alike. A run without a logger cannot be proven either way.

> **Board archive card. Released only in answer to an Information Request.** Do not forward this card to another department; if they need it, they file their own request. Every request and every answer is recorded in the Board Decision Log.

> **GenAI transparency.** This card was written with Claude (Anthropic) by the course team, based on the FreshWay case design and a source-checked figure sheet. Figures that are not in the figure sheet were made up with the model to fit the case, and checked by the course team against the figure sheet and the datasets. Human-AI Agency Label: **Co-Creator**. Label source: Boetje, J., & Baake, G. (2026). *Nine prototypical human-AI agency patterns* [Figure]. figshare. https://doi.org/10.6084/m9.figshare.31706884 (CC BY 4.0).
